

		1. Attorneys’ fees in the amount of \$42,000, or 30% of the GSA. The Court finds this amount to be a reasonable result in light of the quality of the result obtained, the work performed by counsel, and the estimated lodestar. In approving this amount, the Court is not approving any particular hourly billing rates proposed by counsel. 2. Litigation costs in the amount of \$9,294, representing the full amount sought. 3. Administration costs in the amount of \$4,650, per the administrator’s revised bid. 4. An enhancement of \$5,000 to Plaintiff. In making this award, the Court has considered only the factors discussed in <i>Golba v. Dick’s Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251 and <i>Clark v. Am. Residential Servs. LLC</i> (2009) 175 Cal.App.4th 785. 5. The amount remaining is to be distributed 65% to the LWDA and 35% to the aggrieved employees as required by PAGA. Please submit a revised proposed order for the Court’s signature that conforms to the foregoing.
8	Rodriguez vs. CVS Pharmacy, Inc. 2026-01576349	Plaintiff’s Motion for Appointment of Counsel VACATED
9	Lusardi Construction Company vs. Causey 2025-01498620	Defendant's Motion for Order to Stay Proceedings Defendant MBO, Inc.’s motion to stay is GRANTED IN PART AND DENIED IN PART as set forth below. Specifically: 1. The motion is DENIED as to Lusardi’s seventh cause of action for declaratory relief regarding the duty to defend. 2. The motion is GRANTED as to Lusardi’s remaining claims. GROUNDSD FOR RULING I. Background In this construction defect matter, Lusardi entered into a prime contract with non-party S3 Hospitality, LLC (“Owner”) for the construction of a Hilton Garden Inn in Irvine. Lusardi, in turn, entered into subcontracts with Defendants here, including

	moving defendant MBO. Owner contends the construction of the hotel was defective. Pursuant to the dispute resolution terms of the prime contract between Owner and Lusardi, Owner filed a claim for arbitration with AAA, <i>S3 Hospitality LLC v. Lusardi Construction Company</i>, AAA No. 01-24-0008-2281 (“Arbitration”). Lusardi, in turn, filed counterclaims against Defendants in the Arbitration. But Defendants—with the exception of Horizon Heating & Air Conditioning—refused to participate in the Arbitration. They argued the terms of their subcontracts didn’t require their joinder. In response, Lusardi filed the present lawsuit. Lusardi also filed an R-7 motion in the Arbitration to compel Defendants’ joinder. The R-7 arbitrator denied Lusardi’s motion by written order on June 4, 2026. The arbitrator explained: “The subcontract language clearly requires arbitration in any dispute involving less than \$100,000, but expressly calls for any other disputes to be resolved by way of judicial action, except that if one of the parties initiates judicial action, the other party has the option of demanding arbitration of the dispute. In other words, if a subcontractor sues Lusardi, Lusardi could take the matter to arbitration; otherwise, the matter is to be resolved in a judicial action. That is the case here.” (Menjou Decl. (included in ROA 150) Ex. C, at p. 4.) As of July 2026, no arbitrator had yet been appointed for further proceedings in the Arbitration. (Menjou Decl. Ex. B, at p. 4.) II. <u>Discussion</u> Relying on CCP §§ 128, 1281.2, and 1281.4, as well as the Court’s inherent power, MBO moves for a stay of this matter until the Arbitration is resolved. A. <u>CCP §§ 1281.2, 1281.4</u> MBO first asks the Court to stay proceedings under the California Arbitration Act. This request is denied. CCP § 1281.2 allows a court to stay “the pending court action . . . pending the outcome of the arbitration proceeding.” But a court only has this power when acting “[o]n petition of a party to an arbitration agreement.” (<i>Ibid.</i>) No such petition has been filed here. Similarly, § 1281.4 allows a court to stay an action pending completion of arbitration, but only when that court “has ordered arbitration of a controversy.” No such order exists. While MBO’s arguments about the policy underlying these statutes has some appeal, policy arguments are not enough to overcome clear statutory language. B. <u>CCP § 128 and Inherent Power</u> Alternatively, MBO asks the Court to stay proceedings under CCP § 128 and the Court’s inherent power. “As the court in <i>Landis v. North American Co.</i> (1936) 299 U.S. 248, 254, 57 S.Ct. 163, 81 L.Ed. 153 explained, ‘the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.’” (<i>OTO, L.L.C. v. Kho</i> (2019) 8
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	Cal.5th 111, 141.) 1. <u>Duty to Defend</u> MBO contends a stay is required to avoid the risk of inconsistent results. As to Lusardi’s claim for declaratory relief regarding the duty to defend, the Court disagrees. “[A]n indemnitor’s duty ‘to defend’ the indemnitee upon the latter’s request, places in every indemnity contract, unless the agreement provides otherwise, a duty to assume the indemnitee’s defense, if tendered, against all claims ‘embraced by the indemnity.’” (<i>Crawford v. Weather Shield Mfg., Inc.</i> (2008) 44 Cal.4th 541, 557.) “[T]he duty arises immediately upon a proper tender of defense by the indemnitee, and thus before the litigation to be defended has determined whether indemnity is actually owed. This duty, as described in the statute, therefore cannot depend on the outcome of that litigation. It follows that, under subdivision 4 of [Civ. Code] section 2778, claims ‘embraced by the indemnity,’ as to which the duty to defend is owed, include those which, at the time of tender, <i>allege</i> facts that would give rise to a duty of indemnity. Unless the indemnity agreement states otherwise, the statutorily described duty ‘to defend’ the indemnitee upon tender of the defense thus extends to all such claims.” (<i>Id.</i>, at p. 558.) MBO quotes from the indemnity and defense clause of the subcontract in its reply papers. It provides, in relevant part: “Subcontractor shall indemnify and hold the contractor . . . harmless from and against any claim . . . arising by reason of Subcontractor’s negligent act or omission Should any claim for such damages or injury . . . be made or asserted, Subcontractor agrees to and hereby does assume . . . the defense of any action at law or equity which may be brought against Contractor” (Reply (ROA 180) at p. 6, quoting FAC Ex. D.) For purposes of Defendants’ duty to defend Lusardi, the question is whether Owner has “made or asserted” a claim arising from Defendants’ negligence. Under <i>Crawford</i>, the duty to defend arises upon Lusardi’s tender of such a claim. Whether Defendants are ultimately found negligent is irrelevant to the analysis. What matters is what Owner’s claims allege. On this point, there is no risk of conflicting rulings between this action and the Arbitration. Either Owner’s claims arise from Defendants’ alleged negligence, or they do not. The Arbitration will not decide what Owner’s <i>allegations</i> are. The motion is therefore denied as to Lusardi’s seventh cause of action for declaratory relief regarding the duty to defend. 2. <u>Other Claims</u> Lusardi’s other claims are a different story. The first through fifth causes of action are claims for damages. Lusardi’s damages, if any, can’t be calculated until after the Arbitration concludes. The sixth and eighth causes of action seek declaratory relief regarding Defendant’s duty to indemnify. And while they aren’t claims for damages, they can’t be resolved until the Arbitration concludes. “One can only indemnify against ‘claims for damages’ that have
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		been resolved against the indemnitee, i.e., those as to which the indemnitee has actually sustained liability or paid damages.” (<i>Crawford, supra</i>, 44 Cal.4th at p. 509.) Moreover, there is a real risk of inconsistent rulings. For Lusardi to prevail on its indemnity claims, Defendants’ negligence must be the proximate cause of Owner’s damages. If this action weren’t stayed in favor of the arbitration, the arbitrator could find that Defendants’ negligence didn’t cause Owner’s damages, while this Court could simultaneously find Defendants’ negligence did. Such a result is to be avoided. However, Lusardi argues that the risk of inconsistent rulings can be avoided without a stay by postponing consideration of the merits of the indemnity claims until after the Arbitration concludes. The Court is inclined to agree, but believes consideration of the merits should be formally stayed rather than simply having a trial date pushed back. If a stay is informally accomplished by postponing the trial, there is a chance that summary judgment or adjudication rulings in this matter might conflict with rulings made in the Arbitration. Accordingly, the Court, in a discretionary exercise of its inherent authority, grants the motion as to Lusardi’s remaining claims. Lusardi argues that even if a stay on merits determinations is granted, the Court should allow discovery to proceed so as to avoid duplicative discovery taken in the arbitration proceeding. This request is denied. Allowing such discovery (often the most expensive aspect of any case) would effectively nullify one purpose of the stay—avoiding potentially unnecessary litigation expenses. If such discovery were allowed, MBO would be forced to participate in depositions and written discovery even if it later turns out that Lusardi succeeded in defending against the Owner’s claims. That said, if the Owner prevails in the Arbitration and the stay in this case is lifted, the Court expects the parties to work cooperatively on a discovery plan that allows discovery to proceed in an efficient manner, including what aspects of discovery taken in the Arbitration can be used in this litigation. Moreover, to the extent that discovery aimed at MBO is taken in the Arbitration, the Court expects the parties to cooperate regarding the use of that discovery in this litigation.
10	Legends Hospitality Wage and Hour Cases JCCP 5466	Motion for Coordination Scott Shuster, joined by Trinity Martinez and Demetrius Crook, petition for coordination of the following actions (“Included Actions”): 1. <i>Murchison v. MVP Productions, LLC</i>, Orange County Superior Court No. 21-01234789 2. <i>Martinez v. Legends Hospitality, LLC</i>, Orange County Superior Court No. 24-01380394 3. <i>Shuster v. Legends Hospitality, LLC</i>, Los Angeles County Superior Court No. 22STCV32193